

**Construction Agreement
Alleato LLC**

THIS CONSTRUCTION AGREEMENT (the “Agreement”) is made by and between the following Owner and Contractor as of the latest date set forth on the Signature Page of this Agreement, relating to the following Project:

“Owner”

Entity Name: Craving Crepes LLC
State of Organization: Indiana
Contact Name: Katie Conner
Address: 16413 Chalet Cir
Westfield, IN 46074
Email: katie@ibeach31.com
Phone: 219-363-7121

“Contractor”

Entity Name: Alleato LLC
State of Organization: Indiana
Contact Name: Brandon Clymer
Address: 8383 Craig Street, Ste 150
Indianapolis, Indiana 46250]
Email: bclymer@alleatogroup.com
Phone: 317-760-0088

“Project”

Name: Westfield Collective - Volleyball
Location: 750 E 181st St Westfield, IN
Description: New indoor sand volleyball facility.

NOW THEREFORE, in consideration of the mutual covenants and agreements made and contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Owner and Contractor agree as follows:

1. Work

§ 1.1 Contractor shall provide general contractor construction services with respect to the Project (the “Work”) in accordance with any requirements, specifications, and plans or drawings set forth in Exhibit A, which shall be attached hereto and incorporated herein by reference (the “Construction Plans”). Unless otherwise provided herein, any additions, deletions, or other revisions to or from any of the Construction Plans must be mutually agreed upon in a writing signed by both parties (such writing being a “Change Order”). Each such Change Order shall identify and describe the agreed upon change and shall describe adjustments to the Contract Time and Contract Sum (as each is defined herein) as may be reasonable under the circumstances.

§ 1.2 Unless expressly stated to the contrary in the Exhibit A, Contractor shall furnish, at Contractor’s expense, all labor, equipment, materials, tools, transportation, and other facilities and services and shall perform or cause to be performed all work necessary to perform the Work in accordance with such Construction Plans. Any labor or materials requested by Owner not specified in the Construction Plans shall be at the sole cost and expense of Owner. Should items or materials specified in this Agreement or in the Construction Plans not be readily available, Owner shall select substitutes pursuant to the procedure set forth in Section 1.3 below.

§ 1.3 In the event that the Contractor reasonably determines that any of the materials, appliances, equipment, fixtures or other items specified in the Construction Plans cannot be timely procured or have become prohibitively expensive due to causes beyond the control of Contractor,

Contractor shall notify Owner of such unavailability. In connection therewith, Contractor shall identify no less than one (1) appropriate substitution for the unavailable item or provide other reasonable means by which the Owner may select an appropriate substitution for the unavailable item, which such substitution shall be of a quality and cost which is reasonably comparable to the quality and cost of the unavailable item unless otherwise requested by the Owner. The Contract Sum shall be adjusted to account for any incremental increase or decrease in the cost related to such substitution. In the event Owner fails to select any such items or materials within ten (20) days after notice thereof from Contractor to Owner, Contractor shall be entitled to make such selections for Owner, and Owner shall be bound by such selections.

§ 1.4 Unless otherwise provided in the Construction Plans, Owner shall be solely responsible for any and all approvals, permits, and licenses from governmental authorities relating to the Project that are necessary for Contractor to perform the Work. Owner shall further comply with and provide any notices required by any governmental or regulatory authority having proper jurisdiction over the construction of the Project. Owner shall indemnify and hold harmless Contractor from and against any and all claims, judgments, liabilities, losses, costs, and expenses (including reasonable attorneys fees) arising from any failure on the part of the Owner to secure any and all necessary or required approvals, permits, or licenses from applicable governmental authorities.

2. Commencement Date and Substantial Completion

§ 2.1 The date of commencement of the Work shall be (the “Commencement Date”):

(Check one of the following boxes.)

- ☐ The date of this Agreement.
- ☐ A date set forth in a notice to proceed issued by the Owner.
- ☒ Established as follows:

(2 weeks from building permit approval)

§ 2.1.1 If the Commencement Date is not selected, then the Commencement Date shall be the date of this Agreement.

§ 2.1.2 If prior to the Commencement Date a Force Majeure Event (as defined in Section 9.8) occurs, Contractor may, in its sole discretion, terminate this Agreement by written notice to Owner after which the parties shall have no further obligation or liability hereunder.

§ 2.2 The “Contract Time” shall begin on the Commencement Date and continue until the Work for the Project or designated portion thereof is sufficiently complete in accordance with the Construction Plans so that Owner can occupy or utilize the Project for its intended use (such sufficient completion being “Substantial Completion”).

§ 2.3 Subject to adjustments of the Contract Time as provided in this Agreement, Contractor shall use commercially reasonable efforts to achieve Substantial Completion of the Work:

☒ Not later than (237) working days from the Commencement Date.

☐ By the following date: _____

§ 2.3.1 The Contract Time shall be subject to equitable adjustment due to delays attributable to Force Majeure Events, stoppage of work pursuant to Section 7.1 due to Owner's failure to pay amounts due, an excess number of Change Orders or alterations requested by the Owner after the Commencement Date, or any other causes of delay beyond the Contractor's control. Notwithstanding anything to the contrary herein, Contractor does not guarantee a Substantial Completion date, and Contractor shall not be obligated to provide or compensate Owner for any accommodations, damages, whether consequential or otherwise, or other expenses as a result of any delays in completion or extensions of the Contract Time under this Section 2.3.1. Further, such delays shall not serve to cancel, amend or diminish any of the Owner's obligations undertaken in this Agreement.

§ 2.3.2 If portions of the Work are to be completed prior to Substantial Completion of all the Work for the Project, the Contractor shall achieve Substantial Completion of such portions by the following dates:

Portion of Work	Substantial Completion Date
_____	_____
_____	_____
_____	_____
_____	_____

3. Contract Sum; Payments

§ 3.1 The Owner shall pay the Contractor the amount of \$1,782,000.00 as compensation for the Work provided pursuant to this Agreement (the "Contract Sum"), which shall be subject to adjustment pursuant to any Change Orders and as otherwise provided in this Agreement.

§ 3.2 The Contract Sum shall be paid on a monthly basis according to the progress of the Work for the Project (the "Progress Payments"). Contractor shall send invoices for Progress Payments at the beginning of each calendar month for progress achieved on the Work during the immediately preceding calendar month, and such Progress Payment shall be due within thirty (30) days of delivery to Owner. Progress Payments due and unpaid shall bear interest from the date payment is due at the rate of 1%.

§ 3.3 For each progress payment made prior to Substantial Completion of the work, the Owner may withhold the following amount, as retainage, from the payment otherwise due: 10%

§ 3.4 Final payment, constituting the entire unpaid balance of the Contract Sum, shall be made by the Owner to the Contractor when the Contractor has fully performed its obligations under this Agreement, except for the Contractor's responsibility to correct Work as provided in Section 4.1, and to satisfy other requirements, if any, which extend beyond final payment. Contractor shall invoice Owner for the entire unpaid balance of the Contract Sum in accordance with this Section and Owner's final payment to the Contractor shall be made no later than thirty (30) days after the issuance of such invoice.

4. Construction

§ 4.1 Upon Substantial Completion of the Work, Owner and Contractor shall meet and compile a list of any items that are incomplete or otherwise do not conform to the requirements of the Construction Plans (the “Punchlist”). The Contractor shall, weather permitting, promptly correct Punchlist items and shall bear the cost of such correction or completion. Items that are observable during the course of an inspection but not noted on the Punchlist shall be deemed waived by the Owner, except to the extent that waiver is not permitted by applicable law. Subject to the foregoing, Contractor’s Substantial Completion of the Work shall constitute acceptance by Owner of the Project “as built” and Owner’s acknowledgement that the Work rendered at the Project have been completed in accordance with this Agreement and that Contractor has complied with its obligations. If requested by Contractor, Owner shall execute a Certificate of Acceptance in form satisfactory to Contractor, certifying that the Work and improvements are and have been completed in substantial conformity with the requirements of this Agreement.

§ 4.2 Owner may engage an inspector, at Owner’s sole cost and expense, to inspect the Work performed under this Agreement and the Contractor’s compliance with this Agreement and the Construction Plans, provided however, that such inspector shall not unreasonably interfere with Contractor’s good-faith efforts to continue Work for the Project. In the event Owner objects to any Work, Owner shall identify its objections in writing to Contractor. In the event of any dispute over the completion of any particular item, such dispute shall be resolved in accordance with Section 6 herein.

§ 4.3 Contractor shall carry general liability insurance and any other such insurance as may be required under applicable law in amounts not less than that required under the laws of the State of Indiana for general contractors. Owner shall continue to carry property insurance in an amount sufficient to cover the full value of Owner’s property, and all improvements thereto, against any damage or loss, which causes of such damage or loss shall include but not be limited to theft, vandalism, fire, and acts of God. Each Party shall provide certificates of insurance showing their respective coverages prior to the Commencement Date. Owner and Contractor waive all rights against each other and any of their respective subcontractors, sub-subcontractors, agents, and employees for damages caused by fire, or other causes of loss, to the extent those losses are covered by insurance required by this Agreement or other property insurance applicable to the Project, except such rights as either party may have to proceeds of such insurance.

5. Warranties and Disclaimer

§ 5.1 Owner shall receive the benefit of all warranties and guarantees, if any, given or made by manufacturers or suppliers of appliances, materials, and equipment installed or utilized in the Work for the Project. Contractor shall have no responsibility with respect to any such warranties or guarantees, and Owner shall look solely to such manufacturers’ warranty for coverage, replacement, and repair to any such appliances, materials, or equipment. Owner shall be given copies of all written warranties and guarantees, if any, and Owner shall examine, inspect, and review the same to the extent desired by Owner on or before Substantial Completion of the Work.

§ 5.2 CONTRACTOR HEREBY EXPRESSLY DISCLAIMS ANY AND ALL IMPLIED WARRANTIES UNDER INDIANA LAW INCLUDING, BUT IN NO WAY LIMITED TO, THE IMPLIED WARRANTY OF FITNESS FOR HABITATION, AND THE IMPLIED WARRANTY OF WORKMANSHIP. OWNER ACKNOWLEDGES, BY SIGNING OWNER’S COMPLETE SIGNATURE THAT OWNER HAS READ, UNDERSTANDS, AND VOLUNTARILY AGREES TO THIS DISCLAIMER.

6. Dispute Resolution

§ 6.1 If there is a dispute regarding the interpretation of this Agreement or the enforcement of a party's rights or obligations under this Agreement (a "Dispute"), the parties agree, to the fullest extent permitted by law, to use the following procedure to resolve the Dispute: (a) a meeting shall be held promptly between the parties to attempt in good faith to negotiate a resolution to the Dispute, and (b) if, within fifteen (15) days after such meeting described in the foregoing clause, the parties have not succeeded in negotiating a resolution of the Dispute, either party may notify the other that it desires to send the Dispute to binding arbitration pursuant to Section 6.2 below.

§ 6.2 If any Dispute is sent to arbitration pursuant to Section 6.1 above, then promptly after an arbitrator has been selected, as mutually agreed upon by the parties, but in no event later than thirty (30) days thereafter, at a date to be set by the arbitrator, an arbitration hearing shall be held in Indianapolis, Indiana. The rules of the American Arbitration Association shall apply to any Dispute, and the arbitrator shall allow each side of the Dispute to present, in the presence of the other party, its case, including opening statement, evidence, witnesses, if any, and summation. The arbitrator shall render its decision within thirty (30) days after the hearing. The decision and award, if any, of the arbitrator shall be final, binding and non-appealable. Any award shall provide for the entire costs and expenses of the arbitration, including reasonable attorneys' fees, by the losing party where it is determined that the arbitration has been made necessary by the refusal or failure of that party to negotiate in good faith the matter that is the subject matter of the arbitration. If no such determination is made, each party to the Dispute shall bear its own costs and expenses. Judgment may be entered on any award so rendered in any court of competent jurisdiction. In order to be eligible to serve as an arbitrator pursuant to this Agreement, the arbitrator must have a minimum of ten (10) years of experience adjudicating disputes arising out of the general contractor and construction industry.

7. Termination of Agreement; Suspension of Work

§ 7.1 If the Owner fails to make timely Progress Payments as provided in Section 3.2 for a period of forty five (45) days through no fault of the Contractor, the Contractor may, in its sole discretion: (a) terminate this Agreement by delivering notice of such termination to Owner and recover from the Owner payment for Work executed, including reasonable overhead and profit on Work executed, costs incurred by reason of such termination, and damages; or (b) stop Work until Owner has paid all overdue Progress Payments with any accrued interest on such overdue amount pursuant to Section 3.2. Contractor's failure to exercise its rights under this Section 7.1 shall not be deemed to constitute a waiver of such rights, including, but not limited to, if Contractor elects to exercise its right to suspend Work pursuant to Section 7.1(b), Contractor's right to terminate this Agreement pursuant to Section 7.1(a) shall not be deemed to be waived. For the avoidance of any doubt, Contractor's rights hereunder shall in be in addition to any rights or remedies that may be available to Contractor at law or in equity.

§ 7.2 The Owner may, at any time, terminate this Agreement for the Owner's convenience and without cause by delivery written notice to Contractor of such termination. The Owner shall pay the Contractor for Work executed; and costs incurred by reason of such termination, including costs attributable to termination of subcontracts, plus reasonable amounts for overhead and profits for Work executed.

8. Indemnification To the fullest extent permitted by law, the Contractor shall indemnify and

hold harmless the Owner, Owner's consultants, and agents and employees of any of them from and against claims, damages, losses and expenses, including but not limited to attorneys' fees, court costs, investigative costs, arising out of or resulting from Contractor's performance of the Work, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), including loss of use thereof, and to the extent caused by the grossly negligent acts or omissions of the Contractor, a subcontractor, or anyone for who the direct to provide services at the Project.

9. Miscellaneous

§ 9.1 This Agreement and the exhibits attached hereto, constitute the entire agreement of the parties with respect to the subject matter hereof. This Agreement supersedes any prior or contemporaneous understandings, agreements, representations, and warranties, whether written or oral, between the parties relating to the subject matter herein.

§ 9.2 If any term or provision of this Agreement is held to be illegal, invalid, or unenforceable under the applicable law in any jurisdiction, such illegality, invalidity, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon any such determination that a term or provision is illegal, invalid, or unenforceable, the parties shall negotiate in good faith to modify the Agreement so as to cause the effect of the original intent of the parties as closely as possible, and in a mutually acceptable manner.

§ 9.3 This Agreement may be executed in two or more counterparts and by facsimile or electronic transmission, each of which shall be deemed an original, and all of which together shall be deemed one and the same instrument.

§ 9.4 This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective heirs, executors, administrators, successors, and assigns. Neither party shall assign its respective rights or obligations under this Agreement without the prior written consent of the other party.

§ 9.5 This Agreement shall be governed by and construed in accordance with the laws of the State of Indiana without giving effect to any of its choice or conflict of law provisions. To the extent that applicable law prohibits a Dispute from being resolved in accordance with Section 6 hereof, the parties hereby irrevocably and unconditionally submit to the jurisdiction of the state courts of Indiana and to the jurisdiction of the United States District Court for the District of Southern Indiana, in each case sitting in Indianapolis, Indiana, for the purpose of any suit, action or other proceeding arising out of or based upon this Agreement

§ 9.6 Owner and Contractor agree that Contractor shall perform the Work under this Agreement as an independent contractor. Neither party to this Agreement is an agent, representative, or employee of the other party. Neither party will have any right, power, or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or otherwise bind the other party except as specifically provided herein. This Agreement shall not be interpreted or construed to create an association, agency, joint venture, or partnership between the parties or impose any liability attributable to such a relationship.

§ 9.7 Any written notice or demand required by this Agreement shall be sent by registered or certified mail (return receipt requested), personal delivery, overnight commercial carrier, electronic mail, or other guaranteed delivery to the other party at the address or email as

first set forth in this Agreement. The notice shall be effective (a) as of the date of delivery if the notice is sent by personal delivery or electronic mail, provided that such electronic mailing is sent before 5:00 p.m. local Indianapolis time on a day that is not a Saturday, Sunday, or federal holiday (a "Business Day"), such electronic mailing shall be deemed delivered on the next Business Day if not sent on a Business Day or sent on or after 5:00 p.m. local Indianapolis time on a Business Day, (b) one day after being sent by overnight commercial courier or other guaranteed delivery, or (c) as of the date on the return receipt if the notice is sent by registered or certified mail.

§ 9.8 If, during the term of this Agreement, Contractor shall be unable to begin the Work, be materially delayed in performing the Work, or be unable to achieve Substantial Completion as provided herein for any cause beyond Contractor's reasonable control, including acts of God, epidemic, war, insurrection, riot, shortage of labor or material, strikes, labor unrest, unavoidable casualties or as a result of any terrorism order issued by the United States government, by any official of the State of Indiana, or its political subdivisions (each a "Force Majeure Event"), Contractor shall be excused from performing its obligations hereunder for so long as any such Force Majeure Event shall exist.

§ 9.9 Neither this Agreement nor any exhibits hereto or notices arising hereunder shall be recordable in any public record.

§ 9.10 The direction and supervision of the working forces including subcontractors, rests exclusively with the Contractor or its duly designated agent, and neither Owner nor any of Owner's agent shall issue any instructions to or otherwise interfere with the same. Owner shall not negotiate for additional work with Contractor's subcontractors nor engage another contractor or other subcontractors except with Contractor's prior written consent and in such manner as will not interfere with Contractor's completion of Work under this Agreement. Pursuant to Section 4.2 herein, Owner and Owner's inspector shall have reasonable access to the Project and the cooperation of Contractor to ensure the Work is being performed in compliance with the Construction Plans, provided that any and all such inspections shall not in any way interfere with the ability of Contractor or its employees, agents, or subcontractors to complete the Work.

§ 9.11 Owner shall assume all risks while on the Project and shall hold Contractor harmless with respect to any personal injuries incurred by Owner, Owner's agents and any other person or persons Owner invites onto the Project. Owner shall be solely responsible for all damages caused by Owner, Owner's agents, employees or invitees while on the Project.

Signature Page Attached

“OWNER”

“CONTRACTOR”

Signed: _____

Signed: _____

Printed: Katie Conner

Printed: Brandon Clymer

Title: Owner

Title: CEO

Date Signed: 05/13/2025

Date Signed: 05/14/25

EXHIBIT A
CONSTRUCTION PLANS

Each of the following documents included herein shall be deemed a part of the Construction Plans as defined in the Agreement:

1. Preliminary Proposal of Construction Agreement;
2. Product Specifications;
3. Plans and Drawings; and
4. Any Change Order.

[ATTACH EACH OF THE ABOVE TO THIS PAGE]

ALLEATO GROUP

The Alleato Group . 8383 Craig Street #150 . Indianapolis, IN . 46250

Contact	Brandon Clymer	bclymer@alleatogroup.com	317.760.0088
Contact	AJ Taylor	ataylor@alleatogroup.com	317.363.3396

Project:
Location:

Total	\$	Division 03 Concrete	175,000.00
Total	\$	Division 04 Masonry	20,000.00
Total	\$	Division 05 Metals	570,000.00
Total	\$	Division 08 Openings	60,000.00
Total	\$	Division 09 Finishes	190,000.00
Total	\$	Division 21 Fire Suppression	45,000.00
Total	\$	Division 22 Plumbing	40,000.00
Total	\$	Division 23 HVAC	60,000.00
Total	\$	Division 26 Electrical	250,000.00
Total	\$	Division 31 Earthwork	190,000.00
Subtotal	\$		1,600,000.00
Contingency	\$		-
Insurance	\$		20,000.00
Fee	\$		162,000.00
Total Cost	\$		1,782,000.00